

Memorandum of Agreement

Between Ontario Public Service Employees Union

on behalf of its Local 114

and

The County of Oxford

1. The parties hereto agree to the terms of this memorandum as constituting full settlement of all matters in dispute.
2. The undersigned representatives of the parties agree to recommend complete acceptance of all the terms of this memorandum to their respective principals.
3. The parties agree that the term of the collective agreement shall be from **January 1, 2023** to **December 31, 2025**.
4. The parties further agree that the collective agreement shall incorporate all the terms of the previous collective agreement which expired on **December 31, 2022**, together with the following amendments:

(a) All matters settled and agreed to by the parties prior to the date of this memorandum of settlement and attached hereto as **Appendix A**.

(b) All matters settled and agreed to by the parties today, including:

Mental Health –

PT employees – addition of \$1000 annual mental health benefit to be used for mental health practitioners (effective June 1, 2023)

PT and FT employees – the employer commits to developing and implementing a decompression days policy on a trial basis (not included in CA) following mutual ratification. The trial period will be reviewed with the Labour Management committee prior to the expiration for potential renewal.

NRA60

The parties agree to meet to discuss the recently approved changes under the Ontario Municipal Employees Retirement System (OMERS) that expand the groups eligible for normal retirement age 60 to Paramedics effective January 1, 2021. It is understood the conversion from the current NRA 65 to NRA 60 is subject to negotiation between the parties.

Wages –

2.5% effective January 1, 2023 + \$0.50 market adjustment applied first

2.5% effective January 1, 2024

2.5% effective January 1, 2025

Items Agreed Upon:

Change all gender specific terms throughout the Collective agreement to non-gender terms.

3.01 The Employer recognizes the Ontario Public Service Employees Union (The Union) as the sole and exclusive bargaining agent for all paramedic employees of The County of Oxford Paramedic Services, save and except, ~~Supervisors~~ **Superintendents** and persons above the rank of ~~Supervisor~~ **Superintendent**.

3.03 All correspondence between the parties, arising out of this agreement or incidental thereto, shall pass between the ~~Manager~~ **Director/Chief** of Paramedic Services, and the President of the Local and/or the OPSEU Staff Representative.

6.02 The Employer agrees that new employees in the bargaining unit will be advised as to the names of the stewards. A representative of the Union shall be given the opportunity, upon request to the ~~Manager~~ **Director/Chief** for permission, to meet each new employee, within regular working hours, for a maximum of fifteen (15) minutes during the first thirty (30) days of employment, for the purpose of acquainting the new employee with the benefits and duties of the Union membership, and his responsibilities and obligations to the Union. Such interview must not interfere with the normal schedule of operations or response time.

8.01 The Employer acknowledges the right of the Union to elect ~~four (4)~~ **six (6)** stewards plus the President. All stewards shall have completed their probationary period. The name and area of each of the stewards shall be given to the Employer in writing and the Employer shall not be required to recognize any such steward until it has been so notified. In matters of discipline involving a written reprimand, suspension or dismissal, the Employer shall provide notification in writing of such discipline to the employee and the Steward.

The Employer shall inform the Local President when an employee has retired, resigned or terminated.

12.03 2 **Part-Time Employees**

- (a) When actually at work for the employer, ~~excluding~~ **including** shifts worked **on the following** on speciality teams, ~~for example~~ Public Relations, **Vehicle and Equipment Maintenance** and Education teams.
- (b) When absent due to illness or injury as verified by a medical certificate from a duly qualified medical practitioner for a period of time in excess of one (1) month to a maximum of twenty-four (24) months.
- (c) Where the employee is receiving weekly benefits from Workers' Compensation for a period of twenty-four (24) months.
- (d) When absent on pregnancy or parental leave.
- (e) When absent on an approved educational leave under Article 26.01.

- (f) **Where an employee utilizes a non-paid sick day, the employee shall be credited with seniority for the missed shift, to a maximum of thirty-six (36) hours in a calendar year.**
- (g) **Where an employee utilizes their banked stat time.**

The credited seniority for part-time employees when absent from work in accordance with b), c), d) and e) above, shall be calculated by determining the total number of hours the employee worked, by the Employer in the previous twelve (12) months prior to the first day of absence and then pro- rated for the period of absence.

14.06

Trial Period

The successful applicant to a **permanent non-union position at the County of Oxford within Paramedic Services** shall be allowed a trial period of up to thirty calendar (30) days, during which the County will determine if the employee can satisfactorily perform the job. Within this period the employee may voluntarily return, or be returned by the County to the position formerly occupied, without loss of seniority. The vacancy resulting from the posting may be filled on a temporary basis until the trial period is completed.

19.04

Shift Schedules

Shift schedules will be posted three (3) weeks prior to February 1st, June 1st and October 1st for the subsequent four month period. Changes in the Master Schedule may be made within the two (2) weeks if mutually agreed upon by the Union and Employer.

Where the employer determines the need for a full time float position(s), such float position shall not maintain a schedule line, but instead be utilized to fill vacancies on the schedule.

19.05

Shift Changes

It is agreed by the parties that shift change by the Employer or by the employee(s) is allowable only provided forty-eight (48) hours written notice is given to the party(ies) affected in advance of the originally scheduled shift starting time(s). In situations where the forty-eight (48) hour notice period cannot be provided the request for change must be reasonable and must not adversely affect the operations so as to impair the ambulance service.

The actual arrangement for any shift change is the responsibility of the party requesting the change; however, employees must first have approval of the Deputy Chief of Logistics and Standards or designate, and such approval shall not be unnecessarily withheld.

Shift changes not contained within the pay period will not be at the expense of the Employer.

Shift changes shall not cause the employee to work back to back shifts.

There shall be no split shifts other than specifically provided in the Collective Agreement.

There shall be no pyramiding of benefits arising from the hours of work.

Shift trades shall be allowed across bases.

19.07

Meal Allowance

- (a) Each regular full-time employee shall receive a meal allowance of three hundred **and fifty** dollars **(\$350.00)** ~~(\$300.00)~~ per year payable ~~seventy-five dollars (\$75.00)~~ **\$87.50** each quarter.
- (b) A part-time employee shall receive a meal allowance on a pro-rated basis according to their work scheduled to a maximum of three hundred **and fifty** dollars **(\$350.00)** ~~(\$300.00)~~ per year payable quarterly.
- (c) For new hires, their first quarterly payment will be pro-rated from their date of hire to the end of that quarter.
- (d) The parties agree that in accordance with the Employment Standards Act, as may be amended from time to time, the Employer shall provide an eating period. Due to the nature of the employment such eating period may be interrupted or missed.

19.10 (c)

Where a shift or shifts become open that were previously filled by a regular full-time employee by virtue of illness or leave of absence, and it is expected that the employee will be absent for a period exceeding six (6) weeks, ~~the first six (6) weeks of absence shall be considered Open Shifts and filled in accordance with this Article. After six (6) weeks, the Employer may fill the shift with the most senior part-time applicant based on current seniority. Such appointment will not infer full-time employment or benefits except as provided for under clauses 23.03, 24.02, and 28.04 for the assigned part-time employee. The appointment will cease at the end of the defined term or upon the regular full-time employee's return to work, whichever comes first.~~

Employees in a part time temporary work assignment shall be entitled to 36 hours of unpaid time off and seniority will be accrued for any such time taken.

20.02

A full-time employee may make written application to the Employer for a job share on or before December 1st, April 1st and August 1st with the job share to commence for the subsequent Master Schedule. It is agreed that there shall be no more than ~~four (4)~~ **five (5)** job share arrangements in effect at any one time. Where there are more than ~~four (4)~~ **five (5)** applications for a job share, the job share arrangements will be granted based on seniority. The other half of the job share will be posted in accordance with Article 14 and filled with the most senior part-time applicant.

23.03

A full-time employee who does not work on a designated holiday is entitled to holiday pay at the employee's basic hourly rate of eight (8), ten (10) or twelve (12) hours, based on their regular scheduled shift. For part-time employees who do not work on a designated holiday, paid holiday time will be calculated and paid out in accordance with the Employment Standards Act, as may be amended from time to time. **Part Time employees may elect to bank the holiday time to which they are entitled for use on a future date in the same calendar year.**

23.05

~~An employee may choose to take his/her December 25th and/or December 26th stat lieu time in the month of December.~~ **For full-time employees statutory holiday hours will be pre-loaded at the beginning of each new calendar year, for the entire year. Eligibility for these statutory holidays remains as stated in Article 23.02.** Should the employee utilize the Stat Lieu Time and subsequently not qualify for said Stat Lieu Time, the employee shall be required to reimburse the Employer on his/her first pay period following the December Stat holidays as noted above.

25.10

25.10 On confirmation by the Employment Insurance Commission (EIC) of the appropriateness of this Supplemental Unemployment Benefit (SUB) Plan, an employee who is on pregnancy or parental leave as provided under this Article who is in receipt of Employment Insurance (EI) benefits pursuant to the *Employment Insurance Act*, shall be paid a supplemental benefit. That benefit will be the equivalent to the difference between 75% of his/her regular weekly earnings and the sum of his/her weekly employment insurance benefit and other earnings for a maximum period of seventeen (17) weeks while the employee is in receipt of Employment Insurance benefits which includes the waiting period while waiting to receive Employment Insurance benefits. The employee's regular weekly earnings shall be determined by multiplying his/her regular hourly rate on his/her last day worked prior to the commencement of the leave times his/her normal working hours. **In the event a part time employee is placed on sick leave by their medical practitioner prior to the commencement of their pregnancy leave, their regular weekly earnings will be determined by using the average weekly hours in the 10 pay periods prior to the commencement of their pregnancy related sick leave. Should an employee fail to accept an offer of modified duties that are within their restrictions and limitations, their average weekly earnings will be determined using the 10 pay periods previous to the commencement of their pregnancy leave.**

- In order to be eligible for the top-up under this Article 25.10, the employee must provide the employer with proof that he/she is in receipt of Employment Insurance benefits pursuant to the *Employment Insurance Act* (Canada) and the amount of the EI benefit he/she is receiving.
- In no event will the top-up exceed the difference between 75% of the employee's actual weekly rate of pay that he/she was receiving on the last day worked prior to the start of the leave and the employee's EI benefit calculated without regard to any election by the employee to receive a lower EI benefit spread over a longer period of time as may be permitted under the *Employment Insurance Act*.

26.01

Bereavement Leave

When a death occurs in the family of regular full-time employee, he shall be granted a paid leave of absence at his regular rate of pay at the time of the death. The leave must be taken at the time of death for the purposes of arranging for, attending the funeral of, and mourning thereafter of a deceased relative according to the following schedule.

- (a) In the event of a death of an employee's spouse or child, **mother, father, mother-in-law, father-in-law, brother or sister**, the employee shall receive five (5) consecutive paid days leave of absence.

**re-number remaining*

- ~~(b) In the event of the death of an immediate family member (mother, father, mother-in-law, father-in-law, brother or sister), the employee shall receive four (4) consecutive paid days leave of absence or;~~

- (c) In the event of the death of a secondary family member (grandparents and grandparents-in-law, grandchildren, brother-in-law or sister-in-law, nieces or nephews), the employee shall receive three (3) consecutive paid days leave of absence or;
- (d) In the event of the death of an aunt, uncle, ~~or~~ first cousin, **or to act as a Pallbearer** an employee shall receive one (1) day paid leave of absence for the purposes of attending the funeral if they are scheduled on a regular shift to work the day of the funeral or;
- (e) In the event of the death of a fellow employee, scheduled on duty employees shall be given paid time off to attend the funeral providing coverage can be arranged.
- (f) If the interment should occur at a date later than the funeral, one (1) day from (a, b, c, d, e) shall be held in reserve for the purposes of attending the interment.

For the purposes of clarification of the above paragraphs, a spouse shall be defined as the person with whom the employee currently cohabits with and an in-law shall be defined as a "blood" relative of the current spouse and shall include same sex relationships. The Employer may require the employee to offer documentation of the death of a relative to support a claim for paid leave under this paragraph. In no instance can the claim for paid leave be deferred to a point in time other than immediately coinciding with the time of death.

In the event the employee becomes entitled to bereavement leave under this article while on scheduled vacation, their vacation will be returned to their bank and substituted for bereavement day(s).

Article 28 - Health Benefits

- Increase paramedicals to **\$60** per visit and **\$900** per year for all employees and family members, effective upon the first of the month following mutual ratification
- Increase vision benefits to **\$425**, effective upon the first of the month following mutual ratification
- Increase psychological coverage to **\$3000** effective upon the first of the month following mutual ratification

Letter of Understanding	
Re: Loss of License under Highway Traffic Act	Renew
Re: Acting Superintendent	Renew
Re: Training and Paid Duties	Delete
Re: Auto Assignment of Shifts for Part-time Staff	Delete
Re: Pre-Paid Leave Plan	New, see language below
Re: Preceptor Premiums	New, see language below
Re: Community Paramedicine	Add into CA as below

Letter of Agreement re Pre-Paid Leave Plan

Employees can apply for the Pre-Paid Leave Plan under Oxford County's flexible work arrangement program. If approved, employees must complete their re-certification prior to the end of their leave period. Any re-certification requirements are at the employee's expense and in accordance with Article 14.03.

Letter of Agreement re Preceptor premiums

Should the Ministry provide funding to compensate Preceptors, the parties agree to meet to discuss implementation of such program.

Memorandum of Understanding

Between

The County of Oxford

(The Employer)

And

Ontario Public Service Employees Union and its Local 114

(The Union)

The parties agree to the following:

Whereas the Ministry of Long Term Care (MOLTC) has provided funding to the County of Oxford to operate a Community Paramedicine (CP) program from October 1, 2021 to March 31, 2024;

And whereas the Collective Agreement (CA) allows for a temporary assignment outside of the bargaining unit up to six months in duration;

And whereas the employer will provide education and training over and above the usual Continuing Medical Education;

And whereas the CP program requires consistent, regular staffing in order to build a successful program foundation;

Therefore, the parties agree to the following on a temporary basis:

1. For the CP program, the Employer will be recruiting **non-bargaining** positions of; Coordinator of the CP program, and CP Educator for a duration of the temporary CP funding. The employer will give first opportunity to fill these rolls to existing bargaining unit employees.

2. If the Coordinator of CP and/or CP Educator positions are filled by an existing FT Paramedic, the employer will maintain the existing 42 hours/week on a temporary basis. It is understood that these positions will revert to a non-union work week if/when the program receives base- funding.
3. Selection and compensation for the Coordinator of CP and CP Educator will be in accordance with article 14.05 of the Collective Agreement, with the agreed to duration in this Letter. Seniority under Article 12.03 will continue to accumulate for up to 12 months during these assignments, after which seniority will be maintained but not accumulate.
4. The Employer will recruit sufficient number of Paramedics to staff the CP program. (Initially projected to be 16 Paramedics). Paramedics will be required to commit to performing a CP rotation for a minimum of the duration of the temporary funding. Paramedics may make a request to withdraw from the CP program for extenuating circumstances. Paramedics will be responsible for any education and training expenses incurred, **should they not meet the time commitment outlined in 9. below.**
5. Individuals selected to the CP program will remain Primary Care Paramedics under the Collective Agreement and selection of CP's will be in accordance with Articles 14.01 and 14.02. All other applicable articles of the CA remain in effect.
6. The education and training program may require travel inside or outside of the province. The Employer will be responsible for any tuition, travel; and/or accommodation costs associated with the CP education and training program. Paramedics will have no loss of wages while travelling for or attending the education and training program.
7. Effective upon mutual ratification, should a part time paramedic enter into the CP program, the paramedic will remain as part time status and may be assigned temporary work assignments in a CP rotation.
8. Effective upon mutual ratification, paramedics entering into the CP program are expected to commit to working CP shifts as necessary for a minimum of 2 years following completion of the required education.
9. Should the Community Paramedicine funding be extended past March 31, 2024, the parties agree to meet to negotiate any required changes to this MOU.